

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

January 25, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Ms. Ash. Also present: Carol Intlekofer, City Clerk; Lois Huff, Deputy City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Broyles, and pursuant to support received by Mr Brown and Mr. Pierson, agenda item #18(c) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JANUARY 11, 2010. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JANUARY 19, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, Deputy City Treasurer Lois Huff and City Clerk Carol Intlekofer reviewed information available for a voucher payable to Cheyenne Frontier Days (\$100.00), annual payment for placement of wireless communication equipment. Motion carried. Voting "yes" – all members of the governing body present.

"AN ORDINANCE AMENDING ORDINANCE NO. 3860 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE." Eric Hardgrave, Cheyenne Public Employees Association (CPEA) President, expressed appreciation to Council for listening to employees' concerns regarding benefits and employment issues, and for restoring the longevity pay plan. Edward Melko expressed concerns with Council members' eligibility for City health care coverage, suggested Council members accept reduced compensation due to budgetary concerns, and commented on assessing recreational fees for youth programs relative to the recent lease agreement approved for VFW's Pride Park softball fields. It was noted that not all Council members participate in the health insurance plan. Claus Johnson, Parks & Recreation employee, provided comments on budget concerns, reduction of employee benefits, effect on services provided if staffing levels are reduced, and potential furloughs. He suggested deferral of a scheduled \$1,000,000 BOPU payment due to the current budget situation, and discussed the Salary Task Force Committee's recent proposal involving a compensation and

staffing level study, employee cost savings suggestions, and equitable compensation to governing body members relative to employee compensation cuts. John Palmer, Sanitation Dept. employee, expressed appreciation for restoring the longevity pay plan; commented on state projections and budget concerns for the next fiscal year; requested consideration of employee cost savings/efficiency ideas; expressed that employees are dedicated to serving the City and community, and encouraged careful review of expenditures. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Brown moved to amend Section 7, by inserting the language “after consulting with City Council leadership,” following the words, “The Mayor”. The section would then read “The Mayor, after consulting with City Council leadership, shall have discretionary authority to declare furlough days, if necessary, due to budget constraints,” seconded by Mr. Pierson. Comments followed in opposition to the proposed amendment relative to Council oversight of the Mayor’s executive administrative authority, as well as comments in support of the amendment which would provide for communication from the Mayor to Council on any possible employee furlough days authorized by the Mayor. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case, Dr Rinne and Mr. Valdez voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#3880)

“AN ORDINANCE AMENDING ORDINANCE NO. 3861 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT.” Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Brown moved to amend Section 8, by inserting the language “after consulting with City Council leadership,” following the words, “The Mayor”. The section would then read “The Mayor, after consulting with City Council leadership, shall have discretionary authority to declare furlough days, if necessary, due to budget constraints,” seconded by Mr. Pierson. Comments followed in opposition to Council overseeing the authority of the Mayor who serves as the City’s executive branch of government, and concern with the phrase “City Council leadership” vs. members of the entire City Council. Brief discussion followed on the proposed amendment providing that notification be received from the Mayor prior to any furlough days being authorized. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case, Dr. Rinne and Mr. Valdez voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#3881)

“AN ORDINANCE AMENDING SECTION 6.08.020(B), KEEPING OR SLAUGHTERING OF CERTAIN ANIMALS – RESTRICTIONS WITHIN CITY, OF CHAPTER 6.08, ANIMAL CARE AND CONTROL REGULATIONS GENERALLY, OF TITLE 6, ANIMALS, AND AMENDING SECTION 6.20.010, DESIGNATION OF ANIMAL SHELTER, OF CHAPTER 6.20, IMPOUNDMENT, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM MR-1 MEDIUM DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR LOT 3 AND THE EAST 23-FEET OF LOT 4, BLOCK 3, ALTA-VISTA ADDITION, CHEYENNE, WYOMING (LOCATED SOUTH OF AND

ADJACENT TO E. 17TH STREET, WEST OF CONVERSE AVENUE).” Mr. Collins moved to approve on second reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present.

[CA] “A RESOLUTION APPROVING AN AMENDED PROMISSORY NOTE FOR CLEAN WATER SRF LOAN - 081 BETWEEN THE STATE OF WYOMING AND THE CITY OF CHEYENNE, WYOMING FOR CHEYENNE’S RECYCLE WATER SYSTEM EXTENSION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN THE AMENDED PROMISSORY NOTE” (Water Enterprise Fund). Motion (per Consent Agenda) carried. (#5179)

“A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR A LAND AND WATER CONSERVATION FUND GRANT FOR THE SADDLE RIDGE PARK PICNIC SHELTER PROJECT” (Community Facility Fees & In-kind labor). Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. It was clarified the substitute authorizes the Mayor and other designees to sign the application and the Mayor to execute the grant agreement if the agreement is approved. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5180)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR FRONTIER EAST, 1ST FILING, A PORTION OF THE NW¼ OF SECTION 4, T. 13N., R. 66W., OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF AND ADJACENT TO CAMPSTOOL ROAD, EAST OF MORRIE AVENUE).” John Steil, Steil Surveying Services, agent for applicant Frontier Refining, requested a revised map that had been submitted be acknowledged as a substitute map. Kevin Burke, Vice-President and Refinery Manager, advised Frontier is not planning to apply for annexation at this time but Frontier, as indicated in a letter to the City, is willing to further discuss the topic and surrounding issues. He commented on the company’s support and involvement (mutual aid) with the county Fire District and industrial water rates received from the Board of Public Utilities, and advised that by not annexing at this time, Frontier does not believe it is hindering the City’s growth in the area. Jeff Ketcham, Laramie County Commissioner, advised that County Commissioners unanimously supported the proposed County Final Plat, as did the County Planning Commission and the City Planning Commission. He noted the staff report indicated there were no comments from City Police or Fire Depts. pursuant to the proposed plat and potential impact to City services, and encouraged members of the governing body to review the minutes from the City Planning Commission meeting. Paula Qualls, Board member, South Cheyenne Community Development Assoc., and member of the County Planning Commission, spoke in support of the plat, and in opposition to annexation. Larry Wolfe, Holland & Hart law firm, attorneys for Frontier Refining, spoke in support of the plat and clarified the item before the governing body pertains to approval of the plat involving an 11 acre parcel to be utilized for storage and parking. He stated further conversations could be engaged in between the City and Frontier regarding annexation issues and effects. Mr. Collins moved to adopt, seconded by Mr. Brown. Mr. Collins moved to amend by including the substitute map, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body present. Discussion followed on support for Frontier Refining and the proposed plat; Urban Planning staff’s recommendation to not approve the plat and reasons for the recommendation; concerns with lack of growth areas for the City, and potential discussions with Frontier Refining involving future

annexation. Main motion as amended by substitute map carried. Voting “yes” – all members of the governing body present. (#5181)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT.§15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS A PORTION OF SECTIONS 12 AND 13, T. 13N., R. 67W., OF THE 6TH P. M., LARAMIE COUNTY, WY (GENERALLY LOCATED EAST OF SOUTHWEST DRIVE, SOUTH OF INTERSTATE 80, WEST OF BNSF RAILROAD, AND NORTH OF WOODENSHOE ROAD, INCLUDING CHEYENNE ANIMAL SHELTER AND ASSOCIATED RIGHTS-OF-WAY).” Brad Emmons, AVI, agent for the applicants, advised pursuant to a request for information concerning contiguity made at Public Services Committee, he had submitted an exhibit regarding this for Council’s review. John Palmer, questioned whether there were any legal objections to annexation of the property. Upon inquiry, Dan White, City Attorney, stated he does not know of any area landowners’ intentions if opposed to the annexation. Donn Edmunds questioned access points to the area. Mr. Collins reported there was no recommendation on the item from Public Services Committee. Mr. Collins moved to adopt, seconded by Mr. Brown. It was noted that the property owners requested annexation. Discussion included potential future access to the area by the developer and, upon inquiry, Gay Woodhouse, attorney representing individuals who live on Southwest Drive, advised they are concerned about access areas and are relying on previous information provided, during comments at prior meetings, involving issues that would be reviewed during the development and platting process. She stated litigation is still ongoing over a previous matter relative to annexation of Southwest Drive. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case and Mr. Valdez voting “no”. (#5182)

“A RESOLUTION AUTHORIZING THE MAYOR TO OFFER FINANCIAL INCENTIVES TO INDUCE CERTAIN ELIGIBLE EMPLOYEES TO RETIRE FROM CITY SERVICE DURING FISCAL YEAR 2009-2010” (sponsors - Mr. Collins, Mr. Pierson and Mr. Spiker) -- referred to Finance Committee. Mr. Brown advised the item was discussed under other items for the agenda at Finance Committee and provisions of Title 2, City Code, had been met. Mr. Brown moved to adopt, seconded by Mr. Collins. Eric Hardgrave, Cheyenne Public Employees Association (CPEA) President, expressed appreciation for the incentive package being proposed to help reduce or potentially eliminate the need for furloughs, and requested that furloughs be utilized before any employee lay-offs are considered. Edward Melko spoke in opposition to use of the sanitation fund (i.e. Solid waste management fund) as the funding source for the retirement incentives, expressing his reasons for disagreement with the funding source, and questioned the amount of City reserves. Questions followed regarding appropriate uses of the solid waste fund. Upon inquiry, Vicki Nemecek, Asst. Public Works Director, provided information on the resolution establishing the solid waste fund, use of the funds, and current fund balance (\$8.8 million). She advised \$2.9 million was expended for the Belvoir Ranch, and that the Belvoir could potentially be the new landfill site. Public Works Director Jim Elias advised staff is working on an overall solid waste management plan and is moving through the process to propose options for a new landfill site, which may or may not be located on the Belvoir. Upon inquiry on whether the money to be taken from the fund must be paid back if a landfill is not placed on the Belvoir, Dan White, City Attorney, opined his belief that the governing body can determine where to move funds within the budget, and that a budget re-appropriation as prepared by the City Treasurer would reflect proposed changes to budget areas pursuant to the Mayor’s reduction measures, the employee ordinances approved earlier in the meeting that will involve changes to the budget, and whatever action is taken on the funding for the retirement

incentives. He stated that without having specifically researched the subject, he is unaware of any external statutory controls concerning the transfer of funds within the budget. Upon further inquiry, Ms. Nemecek briefly reviewed the environmental monitoring contract for the Happy Jack landfill site. During comments, Mr. Brown raised a point of order with Mayor Kaysen ruling comments should remain germane to the subject of the resolution. Discussion followed and included information from Ms. Nemecek on expenses associated with the hauling of solid waste to Ault, CO and proposed plans to increase the fund amount. Topics discussed included: Opposition to using money set aside in the solid waste fund for retirement incentives; moving of funds to another account; whether the funds utilized would be repaid to the fund; using solid waste fund monies for paying retirement expenses; one-time funding; current budget concerns involving reduced revenues and probable less funding to be received through action of the state legislature; the need to reduce City costs, and overall support for the employee voluntary early retirement incentives. Dr. Rinne moved to amend by changing the source of funding from the solid waste fund to general fund reserves, seconded by Mr. Collins. Mr. Melko commented that the proposed amendment is a more acceptable fund to use, and John Palmer questioned borrowing the money with the intent of paying it back instead of just re-appropriating it. Upon inquiry, Deputy City Treasurer Lois Huff advised an estimated 30 day reserve amount is \$4.2 million, and that the City's un-designated reserves are currently at \$4.4 million; designated and un-designated amount is \$7.4 million. Comments followed on concerns with using unencumbered reserves when it is for emergency purposes, and borrowing (loaning) the monies from the solid waste fund and replenishing it in the future. Motion to amend failed. Voting "yes" – Ms. Case, Mr. Collins and Dr. Rinne. Voting "no" – Mr. Brown, Ms. Broyles, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Upon inquiry, Human Resources Director Rich Wiederspahn clarified an individual that retires under the state retirement system can be rehired by the same employer in the future, however, there is a penalty to the employer as it must repay the retiree's share in full back into the system, which would affect the budget. Motion carried. Voting "yes" - all members of the governing body present. (#5183)

[CA] "A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS A PARCEL OF LAND BEING SITUATED IN THE SW¼ NW ¼ OF SECTION 21, T. 14N., R. 66W., OF THE 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF PLAIN VIEW ROAD, WEST OF POINT BLUFF, AND NORTH OF APACHE STREET)" -- referred to Public Services Committee (sponsor - Ms. Ash).

LEASES/CONTRACTS/LEGAL:

[CA] Contract between the City of Cheyenne, Transit Division and Wyoming Department of Health, Aging Division, for supportive services to older and disabled adults (Title III-B Program Grant). Motion (per Consent Agenda) carried. (#5499)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Department and Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails, for a Motorboat Gas Tax Grant for fence/handrail along boat launch and promenade at Sloans Lake (Parks & Recreation Budget & In-kind labor and equipment use). Motion (per Consent Agenda) carried. (#5500)

Beverage Agreement between the City of Cheyenne, Parks & Recreation Department and Pepsi-Cola Bottling Company to provide pouring rights and sponsorship recognition at the Youth

Activity and Community Center. Mayor Kaysen declared a conflict of interest (family affiliation) and, after relinquishing duties of the chair to Council President Broyles, vacated Council Chambers. Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Council President Broyles returned duties of the chair to Mayor Kaysen, who returned to Council Chambers. (#5501)

[CA] Professional Services Contract between the City of Cheyenne and Wyoming Travel and Tourism for interpretive signs at two downtown historic sites (In-kind services/no cash match). Motion (per Consent Agenda) carried. (#5502)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives and State of Wyoming, Department of Family Services, Division of Juvenile Services for juvenile diversion and transitional services. Motion (per Consent Agenda) carried. (#5503)

[CA] Program Funding Agreement between the City of Cheyenne, Transit Division and United Way of Laramie County for Bus Token Assistance for low to moderate income. Motion (per Consent Agenda) carried. (#5504)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives and Laramie County Community Partnership, Inc. to provide a range of academic and other enrichment activities to at risk school age youth at Johnson Jr. High -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and TriHydro Corp. for environmental monitoring at Happy Jack Landfill (Solid Waste Fund) -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for Cheyenne Marginal-Vandehi Interchange (2007-2010 1% Sales Tax) -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 3 to Contract No. 5316 between the City of Cheyenne and J-2 Contracting Co., Inc. for partial release of retention funds, for the David R. Romero South Cheyenne Community Park Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (release in the amount of \$156,040.76). (#5316)

[CA] Contract Modification No. 1 to Contract No. 5428 between the City of Cheyenne and Mill Brothers Landscape and Nursery, Inc., Ft. Collins, CO for additional irrigation and ground preparation for Saddle Ridge Neighborhood Park (School Dist. Rec. Mill) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #R-6-10 for furnishing one new street sweeper with conveyor belt from Titan Machinery of Cheyenne for the Street & Alley Department (2003-2006 & 2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (in the amount of \$149,812.64).

[CA] Consideration of Bid for surplus property from Total Energy Corp., North Salem, NY, for two large propane storage tanks previously utilized by the Board of Public Utilities. Motion (per Consent Agenda) carried (revenue to BOPU \$10,000.00).

[CA] Consideration of Bid for surplus property from Green River/Rock Springs/Sweetwater County - Joint Powers Water Board, (GRRS/JPWB), for an Opto-22 computer control system used for filter backwash control at the old RL Sherard Water Treatment Plant. Motion (per Consent Agenda) carried (revenue to BOPU \$5,175.00).

[CA] Consideration of Bid #M-11-10 for a contract between the City of Cheyenne and Reiman Corp., for the East Cheyenne Greenway, Phase IIIb Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of the Appointment of Shane Moore, Gale Shenefelt, Charles Livermont, Daryl Hensel, Regina Meena and Clayton Gray, to the Mayor's Council for People with Disabilities, to be confirmed February 8, 2010.

OTHER CITY BUSINESS:

Upon inquiry concerning Saturday commercial (business) sanitation pickup service, Public Works Director Jim Elias confirmed pickups are being done and that it is a paid service. He requested further information if there were service concerns so he could check into the matter.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:39 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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